



SPONSOR: Sen. Wilson & Rep. Morris

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 51

AN ACT TO AMEND THE CHARTER OF THE CITY OF HARRINGTON RELATING TO THE POWER TO IMPOSE AND COLLECT A LODGING TAX.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend the Charter of the City of Harrington by making deletions as shown by strike through and insertions as shown by underline as follows:

4.2. Enumeration of Powers. Not by way of limitation upon the scope of the powers vested in the City Council to exercise all powers delegated by this Charter or general law to the City (except as may expressly appear herein to the contrary), but rather by way of enumeration and example, the City Council is vested by this Charter with (among others) the following powers:

4.2.4. May impose and collect a lodging tax of no more than 3% of the rent, in addition to the amount imposed by the State under Chapter 61 of Title 30, for the occupancy of any room in a hotel, motel, or tourist home, as defined under § 6101 of Title 30 of the Delaware Code, located within the boundaries of the City.

Section 2. This Act takes effect retroactively beginning on March 4, 2024.

SYNOPSIS

This Act amends the Charter of the City of Harrington to clarify the City's taxing powers by adding a specific power for the City Council to impose and collect a lodging tax of no more than 3% of the rent, in addition to the amount imposed by the State under Chapter 61 of Title 30, for the occupancy of any room in a hotel, motel, or tourist home, as defined under § 6101 of Title 30 of the Delaware Code, located within the boundaries of the City. This Act takes effect retroactively beginning on March 4, 2024. The City Council adopted an ordinance to collect a lodging tax on March 4, 2024, and the ordinance does not apply to reservations or contracts for lodging executed or completed before the effective date of the ordinance.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a charter issued to a municipal corporation.

Author: Senator Lawson